

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 1216

Introduced by McKinney, 11.

Read first time January 21, 2026

Committee:

- 1 A BILL FOR AN ACT relating to the Nebraska Treatment and Corrections Act;
- 2 to amend section 83-182, Reissue Revised Statutes of Nebraska; to
- 3 provide for educational services and educational programming for
- 4 certain prisoners; to provide duties for the Director of
- 5 Correctional Services, the State Department of Education, and the
- 6 State Board of Education; and to repeal the original section.
- 7 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 83-182, Reissue Revised Statutes of Nebraska, is
2 amended to read:

3 83-182 (1) The director shall establish appropriate programs for
4 each facility designed as far as practical to prepare and assist each
5 person committed to the department to assume his or her responsibilities
6 as a useful citizen. In developing such programs, the director shall seek
7 to make available to each person capable of benefiting therefrom academic
8 or vocational training, participation in productive work, religious and
9 recreational activities, and such therapeutic measures as are
10 practicable. No person shall be ordered or compelled to participate in
11 religious activities.

12 (2)(a) The director shall provide educational services and
13 educational programming to any person committed to the department who is
14 under twenty-one years of age, and shall ensure special education
15 services are provided to such person as required by state law, if such
16 person has not previously earned a diploma of high school equivalency or
17 a high school diploma.

18 (b) Such educational services shall be substantially similar to the
19 minimum standards as determined by the State Department of Education,
20 including a minimum curriculum that includes language arts, social
21 science, science, and mathematics, and may include other subjects
22 including, but not limited to, vocational education, computer education,
23 arts, and physical fitness. Such programs may be offered by the
24 department or through partnerships with educational institutions.

25 (3) The State Board of Education may adopt and promulgate rules and
26 regulations to carry out this section and to ensure the educational
27 services and educational programming meet any applicable educational
28 requirements.

29 **Sec. 2.** Original section 83-182, Reissue Revised Statutes of
30 Nebraska, is repealed.